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Analysis and Critique of Judith Jarvis Thomson's "A Defense of Abortion"

In 1971 Judith Jarvis Thomson published her paper "A Defense of Abortion."

This analytical examination of the act of abortion and the circumstances that lead to such a decision is a very thoughtful piece of philosophical writing. In the following pages, I will examine a portion of Thomson's arguments that focus on the abortion of a pregnancy from voluntary intercourse. Furthermore, I will critique these arguments in an attempt to understand the parallels between philosophical examples and reality. A significant amount of Thomson's paper is spent arguing against the premise that a child has an unrestricted right to life when conceived as a result of voluntary intercourse. The author acknowledges that a woman who becomes pregnant through deliberate sexual intercourse is, herself, partially responsible for the pregnancy. However, by the use of analogies of the 'burglar' and the 'people-seeds', Thomson explains how a pregnant woman's degree of responsibility does not grant the child a right to use her body.

The first analogy Thomson uses pertains to a burglar. The example states that a woman, in a stuffy room opens a window, wanting to get some fresh air. After opening the window, a burglar climbs in. Now it is assumed that the woman indeed knows that burglars exist, and that they do burgle, so by opening the window she knowingly incurred the risk of a burglar entering. Applying the theory that an unborn child has a right to the woman's body so long as she became pregnant by her own actions would imply the burglar has a right to stay. Because the woman knowingly opened herself to the risk of a

burglar entering, once the burglar enters she is required to let him stay. To strip away the analogy, the argument would imply that a woman who decides to have sex simply because she wants to, and as a result becomes pregnant, then the child would have a right to use the woman's body. Thomson remarks that this example is somewhat ridiculous. Furthermore, she remarks it would be even more ridiculous to suppose the woman had installed anti-burglar bars on her windows and the burglar gained access only by a defect in these bars. In effect the bars represent birth control, and while a woman uses birth control to avoid becoming pregnant, there are failures. By these examples, Thomson attempts to show that simply because a woman has sex and becomes pregnant, it does not imply the pregnancy was wanted, nor does it grant the child a right to use the woman's body. This point is further discussed in her next argument involving 'people-seeds'.

Thomson's second analogy is based on the fictional idea of 'people-seeds'. She states that they "drift about in the air like pollen, and if you open your windows, one may drift in and take root in your carpets or upholstery."¹ Once implanted in your house these seeds would then develop into a 'person-plant'. The author is clear to explain that the same woman from the previous example has installed fine mesh screens on the windows in order to keep the seeds out. However, on very rare occasions a seed could get past a defective screen and implant in the house. This is very similar to the previous analogy in that the screens are intended to represent a form of contraception, additionally the seeds represent sperm, and the carpeting or upholstery represent eggs. Thomson claims that an implanted 'person-plant' does not hold a right to use the house to develop. The woman participated in the risk of opening windows and having carpet and upholstery, and was

¹ Judith Jarvis Thomson, "A Defense of Abortion," *Ethics History, Theory, and Contemporary Issues*. pp. 739.

aware that screens could be defective in rare occurrences. But nonetheless the woman is allowed the right to refuse a 'person-plant' to use her house against her will. Thomson notes that some would say the 'person-plant' has a right to the house because the woman could have gone along without open windows, carpet, or upholstery. However, in a literal sense this would be the same as saying a woman "can avoid pregnancy due to rape by having a hysterectomy."² By this Thomson is implying it would be absurd to not partake in protected sex simply because of the rare chance pregnancy could occur, and therefore the conceived being does not hold a right to use the woman for development. The 'people-seeds' analogy works along with the 'burglar' analogy to portray Thomson's defense of abortion.

Having explained the arguments that Thomson offers previously, I will now offer a critique of the analogies. I will attempt to compare each analogy closely to reality and determine if Thomson's argument remains valid. Firstly, let's examine the 'burglar' analogy. Basically Thomson is saying that a woman opens her window, a burglar climbs in and therefore that burglar does not have a right to stay in the house. In reality this would state that a woman who has sex opens herself to the risk of becoming pregnant, however she is not required to complete that pregnancy because it is unwanted. The discrepancy here is related to the statistical case. Without knowing the exact figures, I believe it would be more than fair to say that far less open windows have burglars creep in than women who have sex get pregnant. That is to say the burglar example is on the far-unlikely side of the spectrum, while the pregnancy is more toward the fairly likely side. To continue, Thomson states that it would be another, perhaps more likely, scenario

² Judith Jarvis Thomson, "A Defense of Abortion," *Ethics History, Theory, and Contemporary Issues*. pp. 739.

that the window had bars installed on it in order to keep burglars out, however by no fault of her own, the woman's bars were defective and the burglar still gained entry. This scenario holds more closely to the real life counterpart if we assume the bars represent contraception. That is to say a woman having protected-sex is not very likely to get pregnant, but there is the off chance of a defect in the birth control and as a result pregnancy. Again, there is probably less chance of a burglar gaining access through faulty window bars, than there is chance of a woman becoming pregnant through use of a defective contraceptive. The reason this point is of interest is that we must consider the likelihood of occurrence when examining this issue. If there is a greater chance of getting pregnant than a burglar entering a barred-window, we must consider the former to be on different level, and not entirely comparable to the latter. As a result, Thomson's analogy would not be representative of reality, and her defense would be negligent. Also of consequence, and worthy of examination, is state of mind. For example a woman opening her window is certainly not expecting a burglar to climb in and demand to stay for nine months, however a woman having sex, even protected-sex, understands the possibility that she could become pregnant for nine months. This weakens Thomson's comparison; if the likelihood of burglary is far less than the likelihood of pregnancy, the author cannot rightly compare them. This point carries into the next analogy as well.

The second analogy, based on 'people-seeds', is much like the former analogy in that both the entry of a burglar and the implantation of 'people-seeds' are unwanted and defended against. Yet this analogy relates better to a real life example. If we assume that the 'people-seeds' are sperm, and the window screens are contraceptives, you have a more likely scenario. That is to say when you have a window open and thousands of

‘people-seeds’ are outside and could possibly get in through a defective screen, it very much resembles thousands of sperm that could enter into a woman through a defective condom. Therefore the likelihood of a seed implanting is comparable with the likelihood of getting pregnant. In this way Thomson’s argument is more solid. Also of interest is the power of desire in both cases. Is one woman’s sexual desire greater than another woman’s fresh air desire? This question could, in effect, help or hurt Thomson’s argument. If we determine that the desire in each case is the same, we can conclude that both women are agreeing to take equal risk, thereby making the analogy legitimate. However, if we determine that the desire levels are unequal, the risk levels would undoubtedly be different also, and therefore the analogy would not apply. For the sake of this critique, and in all likelihood correctly, let’s assume that the levels of desire are unequal, thus the risk levels are unequal. Therefore, the right to refuse an implanted ‘person-plant’ use of your home is not equal to the right to abort an unwanted child. Consequently, Thomson’s analogy falls short, and her argument fails.

I believe that through careful analysis and critique of Thomson’s analogies we cannot arrive at an ultimate conclusion. That is to say there is no definitive answer to whether or not her analogies are adequate. As I have shown there are elements that strengthen her argument, and elements that weaken her argument. However, based on my critique I would not be hesitant to conclude that Thomson’s analogies are not solid enough. It is not adequate to claim that refusing to allow a burglar or ‘person-plant’ the use of one’s home is the same as one aborting an unwanted child based on her argument.